

Calendar Line 5-20

Case Name: *Carolyn McKinney, et al. v. Apple Inc.*

Case No.: 25CV464854

These actions arise from defendant Apple Inc.’s (“Apple” or “Defendant”) alleged intentional interception and recording of communications without consent.

Before the Court is Defendant’s omnibus demurrers to the operative complaints in the following cases, which are opposed:

- (1) *Carolyn McKinney, et al. v. Apple Inc.* (25CV464854) (*McKinney*);
- (2) *Cesar Nicolas Avigliano, et al. v. Apple Inc.* (25CV564406) (*Avigliano*);
- (3) *Thomas Henry Kozik, et al. v. Apple Inc.* (25CV465597) (*Kozik*);
- (4) *Zovik Serengulian, et al. v. Apple Inc.* (25CV466084) (*Serengulian*);
- (5) *Kristin Sue Elbert et al. v. Apple Inc.* (25CV466507) (*Elbert*);
- (6) *Adriana Scott, et al. v. Apple Inc.* (25CV466612) (*Scott*);
- (7) *Patrick Casey, et al. v. Apple Inc.* (25CV466683) (*Casey*);
- (8) *Kimberly Lynn Maldonado, et al. v. Apple Inc.* (25CV46721) (*Maldonado*);
- (9) *Elijah Padgett, et al. v. Apple Inc.* (25CV467837) (*Padgett*);
Peter Khanbegian, et al. v. Apple Inc. (25CV467986) (*Khanbegian*);
- (10) *Nick A. Speights, et al. v. Apple Inc.* (25CV468145) (*Speights*);
- (11) *Sergeo R. Perez, et al. v. Apple Inc.* (25CV468430) (*Perez*);
- (12) *Max Nicholas Ulrich, et al. v. Apple Inc.* (25CV469657) (*Ulrich*);
- (13) *Linette Yvonne Frausto, et al. v. Apple Inc.* (25CV469662) (*Frausto*);
- (14) *Kerrie Lynn Sterner, et al. v. Apple Inc.* (25CV469673) (*Sterner*); and
- (15) *Kenneth Rene Mendoza, et al. v. Apple Inc.* (25CV471234) (*Mendoza*).

As discussed below, Apple’s demurrers are OVERRULED.

I. BACKGROUND

According to the allegations in the operative Complaint in *McKinney*, in 2011 Apple integrated its digital assistant Siri into its devices beginning with the iPhone 4s.⁵ (Complaint, ¶¶ 2, 25-26.) By 2019, Siri was a standard feature on subsequent generations of Apple devices. (*Ibid.*) Initially, Siri could only be activated by manually pressing and holding a button on the device, however, in 2014, Apple released a feature which allows users to activate it by saying “Hey, Siri” (the “Trigger Words”). (Complaint, ¶¶ 3, 29.)

Users found that Siri was activated even when they did not say the designated “Trigger Words.” (Complaint, ¶ 4.) Apple was aware of the design flaw but intentionally continued to sell Siri-enabled devices—and continued to record user interactions with Siri—profiting over two hundred billion dollars between 2014 and 2019 alone. (Complaint, ¶¶ 5, 29-30, 32.)

⁵ The allegations in *McKinney* are identical to those in other actions, with the exception of *Frausto* as a first amended complaint has been filed that action and the numbering is slightly different—however, the substance remains identical.